

IN THE HIGH COURT OF HIMACHAL PRADESH, SHIMLA**Cr. MP (M) No. 968 of 2025****Reserved on: 01.08.2025****Date of Decision: 07.08.2025****Vikesh Kumar****...Petitioner****Versus****State of Himachal Pradesh****...Respondent*****Coram******Hon'ble Mr Justice Rakesh Kainthla, Judge.******Whether approved for reporting?¹ No.*****For the Petitioner : Ms. Kanta Thakur, Advocate.****For the Respondent/State: Mr. Parshant Sen, Deputy Advocate General.*****Rakesh Kainthla, Judge***

The petitioner has filed the present petition for seeking regular bail in FIR No. 05 of 2023, dated 05.01.2023, registered for the commission of offences punishable under Sections 302 and 201 read with Section 34 of the Indian Penal Code (IPC) at Police Station Nalagarh, District Solan, H.P.

2. As per the prosecution case, the police recovered the dead body of Lalit Kumar. The Police checked CCTV footage and found that the deceased was going with the petitioner and Rahul. The police arrested the petitioner on 09.1.2023. The

petitioner is presently lodged in 'Kishanpura Jail'. The petitioner is innocent, and he was falsely implicated. The investigation is complete, and the charge sheet has been filed before the learned Trial Court. The prosecution has examined only four witnesses out of 46 witnesses cited by it. The conclusion of the trial is likely to take some time. No fruitful purpose would be served by detaining the petitioner in custody. The petitioner would abide by all the terms and conditions which the Court may impose. Hence, the present petition.

3. The petition is opposed by filing a status report asserting that the police received information from Up-Pradhan, Gram Panchayat Majholi on 5.1.2023 that a decomposed dead body of one person was lying in the jungle. The police went to the spot to verify the correctness of the information. Pradeep Kumar identified the dead body as that of his brother Lalit Kumar. He made a statement before the police that Lalit Kumar had gone from his home on 18.12.2022 after informing his wife that he was going to the Hills. His mobile phone was switched off at 1:00 p.m. Efforts were made to trace him, but he could not be found. The missing report was lodged in Police Station Nalagarh on 20.12.2022. The inquiries were

made, and it was found that Vikesh and Rahul were also missing. The police conducted the investigation. As per the report of the postmortem, the cause of death is asphyxia secondary to ligature strangulation. The police checked the CCTV footage and found that Vikesh, Rahul and Lalit were going towards the jungle. The police also found that only Vikesh and Rahul had returned from the jungle. The police arrested Vikesh and recovered one mobile phone from his possession. Vikesh Kumar identified the place where they had beaten the deceased and transferred ₹20,000/- from the account of the deceased to their account. He also got a stone recovered, which was used for hitting the deceased. The police searched for the petitioner and arrested him on 09.01.2023. He also identified the place and got recovered the stone with which he had hit the deceased. The police recovered ₹10,000/- from each of the accused. The police obtained the details of the accounts of Lalit Kumar and found that ₹20,000/- was transferred from his account to the account of Vikesh. The police filed the charge-sheet before the learned Trial Court on 03.04.2023. The matter is now listed before the learned Sessions Judge, Nalagarh, on 22.08.2025 for the

recording of statements of prosecution witnesses. Hence, the status report.

4. I have heard Ms. Kanta Thakur, learned counsel for the petitioner and Mr. Parshant Sen, learned Deputy Advocate General, for the respondent/State.

5. Ms. Kanta Thakur, learned counsel for the petitioner, submitted that the petitioner is innocent and he was falsely implicated. The prosecution has not completed the evidence despite a lapse of 2 1/2 years; therefore, the petitioner's right to a speedy trial is being violated. Therefore, she prayed that the present petition be allowed and the petitioner be released on bail.

6. Mr. Parshant Sen, learned Deputy Advocate General for the respondent/State, submitted that the petitioner is involved in a heinous offence, which is punishable with capital punishment. The petitioner would abscond in case of his release on bail. Hence, he prayed that the present petition be dismissed.

7. I have given considerable thought to the submissions made at the bar and have gone through the records carefully.

8. It is undisputed that the petitioner had earlier filed a bail petition bearing Cr.MP(M) No.163 of 2024, which was dismissed by this Court on 07.03.2024. It was held in *State of Maharashtra Vs. Captain Buddhikota Subha Rao (1989) Suppl. 2 SCC 605*, that once a bail application has been dismissed, a subsequent bail application can only be considered if there is a change of circumstances. It was observed:

“Once that application was rejected, there was no question of granting a similar prayer. That is virtually overruling the earlier decision without there being a change in the fact situation. And when we speak of change, we mean a substantial one, which has a direct impact on the earlier decision and not merely cosmetic changes, which are of little or no consequence. 'Between the two orders, there was a gap of only two days, and it is nobody's case that during these two days, drastic changes had taken place, necessitating the release of the respondent on bail. Judicial discipline, propriety and comity demanded that the impugned order should not have been passed, reversing all earlier orders, including the one rendered by Puranik, J., only a couple of days before, in the absence of any substantial change in the fact situation. In such cases, it is necessary to act with restraint and circumspection so that the process of the Court is not abused by a litigant and an impression does not gain ground that the litigant has either successfully avoided one judge or selected another to secure an order which had hitherto eluded him.

9. Similarly, it was held in *Kalyan Chandra Sarkar v. Rajesh Ranjan @ Pappu Yadav (2004) 7 SCC 528* that where an earlier bail application has been rejected, the Court has to consider the rejection of the earlier bail application and then

consider why the subsequent bail application should be allowed.

It was held:

“11. In regard to cases where earlier bail applications have been rejected, there is a further onus on the court to consider the subsequent application for grant of bail by noticing the grounds on which earlier bail applications have been rejected and after such consideration, if the court is of the opinion that bail has to be granted then the said court will have to give specific reasons why in spite of such earlier rejection the subsequent bail application should be granted.”

10. This Court had held, while deciding the earlier bail petition, that there was sufficient material to connect the petitioner with the commission of the crime. Therefore, the submission that the petitioner is not involved in the commission of the offence cannot be accepted.

11. It was submitted that there is a violation of the petitioner's right to a speedy trial, due to which the petitioner is entitled to bail. This submission cannot be accepted. Perusal of the record shows that statements of nine witnesses have been recorded, and two have been given up. The charges were framed on 09.01.2024; the examination of ten witnesses within 1 ½ years cannot be said to amount to delay in the progress of the trial. Further, the matter is now listed for the recording of statements of witnesses on 22.08.2025 and 23.08.2025,

respectively and all the witnesses in equal proportion have been summoned, which shows the anxiety of the learned Trial Court to conclude the trial expeditiously. The examination of nine witnesses within a period of 1 ½ years and summoning all the witnesses for 22.08.2025 and 23.08.2025, respectively does not show any delay in the progress of the trial.

12. The allegations against the petitioner, *prima facie*, show the involvement of the petitioner in the commission of an offence punishable under Section 302 of the IPC, which is punishable with capital punishment. Keeping in view of nature of the offence and the severity of the punishment, the petitioner cannot be released on bail.

13 In view of the above, the present petition fails and the same is dismissed.

14. The observation made herein before shall remain confined to the disposal of the petition and will have no bearing, whatsoever, on the merits of the case.

(Rakesh Kainthla)
Judge

07th August 2025.
(ravinder)